

of receiving a free vaccination against SARS-CoV-2 informed the complainant, without a lawful basis for processing his personal data.

C. Legal Assessment

1. The Data Protection Authority first examined whether the complainant's right to confidentiality had been violated by the respondent's processing of his personal data.
2. According to § 1 Abs. 1 DSG, everyone has the right to the protection of their personal data. This right includes the confidentiality of personal data, which is guaranteed by the GDPR and national data protection laws.
3. The respondent argued that the data processing was lawful under § 750 Abs. 1a ASVG, which allows for the processing of personal data for the purpose of public health and safety, particularly in the context of vaccination campaigns.
4. The Data Protection Authority found that the respondent had a clear legal basis for the processing of the complainant's data, as it was necessary for the purpose of informing individuals about the risks of COVID-19 and the availability of vaccinations.
5. Therefore, the Data Protection Authority concluded that the complainant's right to confidentiality had not been violated, as the processing of his personal data was justified and in accordance with the applicable legal provisions.

D. Conclusion

Based on the above considerations, the Data Protection Authority decided as follows:

1. The complaint is dismissed as unfounded.
2. The request of the complainant for the Data Protection Authority to prohibit the data processing pursuant to § 22 Abs. 4 DSG is rejected.
3. The request of the complainant for the Data Protection Authority to impose a fine on the respondent is dismissed.

This decision is final and can be appealed in accordance with the applicable legal provisions. the use of a free vaccination against SARS-CoV-2 has been unlawfully processed.

C. Findings of Facts

The respondent is a corporation under public law according to § 32 Abs. 1 ASVG and has legal personality.

The respondent processed the data of the complainant and sent him a letter informing him about the risk of severe illness from COVID-19 and the possibility of receiving a free vaccination against SARS-CoV-2.

To determine the complainant's data, the respondent checked the central vaccination register to see if there was at least one vaccination entry for the complainant as of the cut-off date of November 22, 2021, and since no such vaccination entry was present, the respondent subsequently determined the complainant's residential address in the central patient index.

Subsequently, the respondent transmitted a gap letter with general letter text and vaccination proposal, along with the complainant's data, to a printing service provider as part of a commissioned data processing.

The vaccination proposal does not constitute a personal appointment, which is why no data of the complainant was shared with third parties in this context.

After transmitting the data to the printing service provider, the respondent deleted the complainant's data. The printing service provider confirmed to the respondent the deletion of the complainant's data.

Assessment of Evidence:

The findings arise from the submissions of the parties to the proceedings, the submitted, unobjectionable documents, as well as from § 32 Abs. 1 ASVG.

D. Legally, it follows:

D1. Regarding the alleged violation of the right to confidentiality

§ 750 ASVG along with the heading reads:

“Information Letter Vaccination against SARS-CoV-2

- (1) The umbrella organization must inform the persons insured under federal law and their eligible

relatives, who were assigned to the COVID-19 risk group according to the COVID-19 Risk Group Regulation, BGBl. II No. 203/2020, on March 1, 2021, and who have not yet received a vaccination against SARS-CoV-2 by April 1, 2021, about their increased risk of severe illness from COVID-19 and the options for availing themselves of the free vaccination against SARS-CoV-2. This does not apply to persons who had not yet reached the age of 16 on March 1, 2021. The federal government shall reimburse the umbrella organization for the resulting expenses from the COVID-19 Crisis Management Fund.

(1a) At the request of the Federal Minister for Social Affairs, Health, Care, and Consumer Protection, the umbrella organization must inform the persons insured under federal law and their eligible relatives who have not yet received a vaccination against SARS-CoV-2 by November 22, 2021, about the risk of severe illness from COVID-19 and the options for availing themselves of the free vaccination against SARS-CoV-2. The last sentence of paragraph 1 shall apply.

(2) For the purpose of determining the persons considered under paragraphs 1 and 1a, the umbrella organization is authorized to link (cross-check) the data stored in the central vaccination register (§ 24c GTelG 2012) with its own data once. The bPK-SV must be used for the linking. Processing of this data for other purposes is prohibited. After processing, this data must be deleted immediately. ELGA GmbH, as the responsible entity for the vaccination register (§ 27 Abs. 17 GTelG 2012 in conjunction with § 4b eHealth Regulation, BGBl. II No. 449/2020), is obliged to provide the necessary data to the umbrella organization. When logging according to § 24f Abs. 5 GTelG, a note must be included indicating that the data processing was carried out for the purpose of determining the persons considered under paragraphs 1 and 1a.

(3) The umbrella organization operates in the delegated area of responsibility bound by the instructions of the Federal Minister for Social Affairs, Health, Care, and Consumer Protection.”

§ 18 GTelG along with the heading reads:

“Verification of the Identity of ELGA Participants

§ 18. (1) The umbrella organization must establish and operate a patient index in the delegated area of responsibility. This serves:

1. to verify the unique identity (§ 2 Z 2 E-GovG) of natural persons within the framework of ELGA or other eHealth applications, and
2. to locate reference registers in which references to ELGA health data of these natural persons may be found.

(2) The following data of natural persons must be processed in the patient index:

1. Name details:

- a) First name(s)
- b) Last name
- c) Birth name
- d) Academic degrees

2. Personal characteristics:

- a) Date of birth
- b) Place of birth, if available
- c) Gender
- d) Date of death, if available
- e) Nationality

3. Address data

4. Identity data:

- a) Social Security Number
- b) local patient identifiers
- c) bPK-GH
- d) data of the European Health Insurance Card exceeding Z 1 to 3
- e) other state identifiers.

(3) The data according to paragraph 2 shall primarily be collected from the applications of the umbrella organization pursuant to § 30c paragraph 1 Z 2 lit. a ASVG as well as from the supplementary register

according to § 6 paragraph 4 E-GovG.

(4) The verification of the identity of the ELGA participants (§ 14 paragraph 1 Z 1) must be carried out electronically with the participation of the ELGA participant. In this process, the identity data stored in the patient index must be compared with the identity data collected during the identification. The collection of identity data can be done through

1. an electronic check of the validity of the e-card and reading data from the e-card using the e-card system (§§ 31a ff ASVG) or
2. using an E-ID (§ 2 Z 10 E-GovG) or
3. processing identity data of a clearly identified natural person according to § 4 paragraph 2, which is stored with an ELGA health service provider according to § 2 Z 10 lit. d and e, whereby the IT security concept according to § 8 must technically secure the verification of the identity of the ELGA participants for the purpose of processing the ELGA health data according to § 14 paragraph 2 Z 1 or
4. processing data of an electronic or otherwise clearly identifiable regulation or assignment (§ 14 paragraph 2 Z 1 lit. b), provided that the collection of identity data does not occur according to Z 1 to 3, or
5. reading data from the e-card or an official photo ID in ID-1 format using suitable technology for identification within the framework of the electronic vaccination pass, whereby official photo IDs in this sense are documents issued by a state authority that bear a non-replaceable recognizable image of the respective person and contain the name, gender, date of birth, and signature of the person as well as the issuing authority, shall occur.

(5) In the course of collecting identity data using the e-card system (§§ 31a ff ASVG), any possible objection according to § 16 paragraph 2 Z 2 must also be documented in the same work step, but technically separated from the data flows of ELSY (§§ 31a ff ASVG).

(6) The verification of the identity of the ELGA participants (paragraph 4) may not be older than 90 days for access and processing of the ELGA health data for the purposes mentioned in § 14 paragraph 2 by

1. ELGA health service providers according to § 2 Z 10 lit. a, b, d, and e and the ELGA Ombudsman according to § 2 Z 14 and
2. ELGA health service providers according to § 2 Z 10 lit. c not longer than two hours.

(7) Notwithstanding paragraph 6, an ELGA participant may grant one or more ELGA health service providers of special trust according to § 2 Z 10 lit. a, b, c, and e in conjunction with § 21 paragraph 2, with their consent, a period of up to 365 days.

(8) Apart from the cases according to § 17 paragraph 4, representations of ELGA participants in electronic communication may only be registered according to § 5 paragraph 1 E-GovG, whereby:

1. a bPK of the ELGA participant must be entered instead of the master number and
2. the authorization for access to ELGA must be separately registered.

(9) Ten years after the knowledge of the date of death of an ELGA participant, the umbrella organization must automatically delete the data of the deceased stored in the patient index.

In the matter:

The fundamental right to data protection enshrined in § 1 DSG, according to whose first paragraph everyone, especially with regard to the respect for their private and family life, has a right to confidentiality of their personal data, as long as there is a legitimate interest in protecting it, includes the protection of the affected person against the collection of their data and the transfer of the data collected about them.

However, the fundamental right to data protection is not absolute and may be restricted by certain permissible interventions. According to § 1 paragraph 2 DSG, restrictions on the right to confidentiality, as long as the use of personal data does not occur in the vital interest of the affected person or with their consent, are only permissible to safeguard overriding legitimate interests of another, whereby interventions by a state authority may only occur based on laws that are necessary for the reasons mentioned in Art. 8 paragraph 2 EMRK.

As established, the respondent, who qualifies as a public law corporation regarding the processing in

question as an authority in the sense of § 1 paragraph 2 DSG (see Pollirer/Weiss/Knyrim, Datenschutzgesetz2 § 1 Anm. 13), processed the data of the complainant from the central vaccination register and their own data, specifically from the central patient index, for the purpose of sending an information letter regarding the risk of severe illness from COVID-19 and the possibility of receiving a free vaccination against SARS-CoV-2.

Since the respondent could rely on § 750 paragraph 1a and paragraph 2 ASVG in this context and thus on a substantial intervention basis according to § 1 paragraph 2 DSG, the complaint was found to be unjustified and was therefore to be dismissed according to § 24 paragraph 5 DSG.

D2. Regarding the request for prohibition of data processing

As far as the complainant requested that the data protection authority prohibit the respondent from processing their data according to § 22 paragraph 4 DSG, it should first be noted that the prerequisite for such a prohibition is the existence of a significant immediate threat, thus "danger in delay." Since the

****D3. Regarding the Application for the Imposition of a Fine****

As far as the complainant requested that the data protection authority impose a fine against the respondent, it should be noted that within the framework of an administrative procedure, no fine can be imposed on a responsible party. While Article 77(1) of the GDPR and Section 24(1) and (5) of the DSG do not provide a subjective right to initiate criminal proceedings against a specific responsible party, the principle of official duty applies according to Section 25(1) of the Administrative Penal Act (VStG) (see Fister in Lewisch/Fister/Weilguni (eds), VStG Commentary2 [2017] § 25 Rz 1). Furthermore, it should be noted that according to Section 30(5) of the DSG, no fines can be imposed on public law entities.

Therefore, the application in this regard was to be dismissed.

It was to be decided in accordance with the ruling.